

1 ENGROSSED HOUSE
2 BILL NO. 3411

By: George and Patzkowsky of
the House

3 and

4 Green of the Senate
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9 [environment and natural resources - Department of
10 Environmental Quality - equipment - testing of
11 samples of biosolids - written warning -
12 application of biosolids to crops - application of
13 biosolids to land - rules - codification -
14 effective date]
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18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 2-6-501.7 of Title 27A, unless
21 there is created a duplication in numbering, reads as follows:

22 A. For the purposes of this section:

23 1. "Biosolids" means primarily organically treated wastewater
24 materials from municipal wastewater treatment plants that are

1 suitable for recycling as amendments. This term is within the
2 meaning of "sludge" referenced in Section 2-6-101 of this title.
3 Nothing in this section shall be construed to apply to septage or
4 sewage that is removed from residential septic tanks; and

5 2. "PFAS" means per- and polyfluoroalkyl substances, including
6 but not limited to PFOA, PFOS, and any additional compounds
7 designated by the Department of Environmental Quality.

8 B. The Department of Environmental Quality shall purchase the
9 necessary equipment to test for PFAS in biosolids.

10 C. To protect the health and safety of the people of this
11 state, prior to land application of biosolids, a sample of the
12 biosolids that are to be applied must first be tested by the
13 Department of Environmental Quality or by a laboratory appropriately
14 accredited to perform such an analysis in order to determine the
15 amount of PFAS in the biosolids prior to land application.

16 D. All farmers and ranchers whose lands are being applied with
17 biosolids shall be given test results that include nitrogen,
18 phosphorus, potassium, pH, PFAS, and heavy metal concentrations by
19 the person or entity providing such biosolids. The Department of
20 Environmental Quality shall help identify known potential risks, if
21 any, that must be disclosed. If risks are identified, those risks
22 shall be provided with the test results from the person or entity
23 providing biosolids.

1 E. Biosolids may not be applied to land where crops are grown
2 for human consumption. Furthermore, biosolids may not be applied in
3 the same place more than once every other year.

4 F. The Department of Environmental Quality shall propose rules
5 necessary to implement this section, which shall include an approval
6 process for alternative treatment methods such as microbial and
7 supercritical water oxidation methods to reduce or remove PFAS from
8 biosolids.

9 G. The Department of Environmental Quality shall implement the
10 requirements of this section no later than January 1, 2028.

11 SECTION 2. This act shall become effective November 1, 2026.

12 Passed the House of Representatives the 11th day of March, 2026.

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14 _____
15 Presiding Officer of the House
16 of Representatives

17 Passed the Senate the _____ day of _____, 2026.

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20 Presiding Officer of the Senate
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